

		Plaintiff's Opposition asserts, without offering any actual testimony or other evidence to support the claim, that he actually paid \$600 in late fees. But even without any admissible evidence from Plaintiff to refute Defendants' claims as to the amount collected, Defendants have failed to meet their burden for the Third Cause of Action. Defendants have thus failed to meet their burden here, as to the Defendants <i>collectively</i>. However, Defendants <i>have</i> shown that there does not appear to be a "reasonable probability" that Plaintiff will prevail in this action as to Defendant Phillip Ravenna or Defendant De Anza Corporation. Merely asserting in response that De Anza signed a sublease for Waterfront Resort Properties LP, or that Ravenna worked as the property manager for Terra Vista Management Inc., does not suffice. Nor does the evidence cited in ROA 348, at ¶ 31, suffice to show any basis for the claims as to those defendants. The Motion is therefore GRANTED IN PART, as to Defendant Phillip Ravenna or Defendant De Anza Corporation. However, the Motion has failed to demonstrate that \$100,000 is justified as the security sum for those two defendants. The Court instead finds that the security sum shall be set at \$50,000. <u>Motion 2 is DENIED.</u> Plaintiff has failed to show either that reconsideration under C.C.P. § 1008 is warranted here, or that the previously determined sanctions award should not remain. Counsel for Defendants to give notice of these rulings.
10	Gonzalez v. Aten Technology, Inc.	O/C
11	Rojas v. Alamirad Dental Corp	Before the Court is a motion to transfer venue and a motion to disqualify counsel filed by defendant Farzan Alamirad (Defendant) against plaintiff Elizabeth Rojas (Plaintiff). For the reasons set forth below, both motions are DENIED. <u>Motion to Transfer Venue:</u> Even if filed in a "proper" county, on appropriate motion, the court has discretionary power to transfer the case to any other county "[w]hen the convenience of witnesses and the ends of justice would be promoted by the change." (Code of Civ. Proc. § 397, subd. (c); <i>Rycz v. Sup. Ct. (McGarry)</i> (2022) 81 Cal.App.5th 824, 836.) Defendant has failed to identify any witnesses who reside in Los Angeles County and only makes generalized assertions that unnamed "percipient witnesses" reside in Los Angeles County. Defendant's main concern appears to be his own inconvenience in having to litigate in Orange County. (Alamirad Decl. ¶¶ 6-7.) However, it is only the convenience of the nonparty witnesses that is important. Absent extraordinary circumstances, the parties' conveniences are not considered – even if they are to testify. (<i>Wrin v. Ohlandt</i> (1931) 213 Cal.158, 160; <i>Simonian v. Simonian</i> (1950)